

[doc. web n. 9946369]
Provision of September 28, 2023
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THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stazione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia and Dr. Guido Scorza, Members,
and Cons. Fabio Mattei, Secretary General;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament
and of the Council, of April 27, 2016, concerning
the protection of natural persons with regard to
the processing of personal data, as well as the free
movement of such data and repealing Directive
95/46/EC, "General Data Protection Regulation" (hereinafter "Regulation");

HAVING REGARD TO Legislative Decree No. 196 of June 30, 2003, containing
"Code regarding the protection of personal data,
containing provisions for the adaptation
of the national legal system to Regulation (EU)
2016/679 of the European Parliament and of the Council, of
April 27, 2016, concerning the protection of
natural persons with regard to the processing of personal data,
as well as the free movement of such data and repealing
Directive 95/46/EC (hereinafter "Code");

HAVING REGARD TO Regulation No. 1/2019 concerning
internal procedures of external relevance,
aimed at carrying out the tasks and
exercising the powers entrusted to the Guarantor for the
protection of personal data, approved by
resolution of the Guarantor No. 98 of 04/04/2019,
published in G.U. No. 106 of 08/05/2019 and in
www.gpdp.it, doc. web n. 9107633 (hereinafter
"Guarantor Regulation No. 1/2019");

HAVING REGARD TO the documentation on file;

HAVING REGARD TO the observations made by the Secretary
General pursuant to Article 15 of the Guarantor Regulation
No. 1/2000 on the organization and functioning of the
office of the Guarantor for the protection of personal data,
in www.gpdp.it, doc. web n. 1098801;

REPORTING by Dr. Agostino Ghiglia;

WHEREAS

1. The investigative activity.

In the month of XX, a report was received by the Guarantor
complaining of a violation of the regulations regarding
the protection of personal data concerning the decision of
Salvator Mundi International Hospital s.r.l (hereinafter
the Hospital) to limit access to the facility only to those
who possessed a Covid-19 green certification. From a preliminary

assessment carried out by the Office upon receipt of the aforementioned report, it was noted that such indication was also reported on the Hospital's website on the page dedicated to "Security measures for accessing the clinic"

(<https://upmcsalvatormundi.it/covid-19-modalita-accesso-clinica>) (documentation on file).

In light of the findings, information was requested from the aforementioned Hospital (note of XX, prot. n. XX), which, in a note dated XX, signed by the data protection officer, represented, in particular, that:

- "the facility has adopted its own access policies, in compliance with current regulations, considering the particular layout of its premises and the patient population in relation to the epidemiological risk associated with such factors, and based on an assessment carried out pursuant to Article 271 of Legislative Decree No. 81/08";
- "access to the clinic's premises was originally regulated (doc. 3 of XX) based on government prescriptions regarding emergency matters. In consideration of the evolving pandemic situation, the measures were modified and on XX a Regulation on Access was adopted (...) requiring the presentation of the green pass or a negative nasopharyngeal swab (TNF) report for all patients, excluding only those who required outpatient services";
- "As a result of the increased spread of the virus recorded in the month of XX, however, this access regime to the clinic's premises was subject to review, to avoid the risk of greater exposure of the facility's patients to the pathogenic risk." "(...) in the month of XX, therefore, the Health Directorate deemed it necessary, also pursuant to the provisions of the regulations, to adopt more restrictive precautionary measures to protect the patients and considering their particular fragility";
- "paragraphs 1, 1-bis, and 1-ter (of Article 1-bis of Decree-Law April 1, 2021, No. 44) regulated the access modalities for both visitors and generally for all subjects to the aforementioned facilities. Paragraph 1-sexies of the aforementioned article provided that 'Health directors are given the authority to adopt more restrictive precautionary measures in relation to the specific epidemiological context, ensuring a minimum daily access time of not less than forty-five minutes,' therefore 'SMIH regulated the requirements for accessing the clinical facility, providing, based on what is established by the regulations, more cautious measures in light of the above as containment measures for the SARS-CoV-2 virus';
- "such measures nevertheless guaranteed the possibility of accessing prevention and care services for the interested parties, providing, as an alternative to the presentation of the so-called green certification, the possibility of presenting a negative nasopharyngeal swab (TNF) rapid antigen test report not older than 48 hours from the date of admission, as well as, for

first aid services, the performance of a rapid TNF antigen test directly at the facility";

- "the only case in which, for the purpose of providing of health services, only the necessity of presenting the green certification (without the possibility of presenting the rapid antigen test result) was foreseen, specifically concerning the provision of outpatient services. This was due to the fact that the clinic's premises do not allow for the creation of separate pathways for "non-severe" patients and "fragile patients," as well as the noted possibility of "false negatives" that could occur with the rapid antigen test;
- "The Lazio Region, with its Circular No. XX of XX, recalling what is provided in D.L. 44/2021, clarified the access modalities to healthcare and hospital facilities in the region, specifying on its portal that 'Access to all healthcare facilities for the procurement of medicines and medical devices, as well as for diagnostic, treatment, and prevention activities, is allowed even without a green pass unless otherwise indicated by the staff for health reasons';
- "Subsequently, on XX, following the entry into force of D.L. March 24, 2022, No. 24 containing 'Urgent provisions for overcoming the measures to counter the spread of the COVID-19 epidemic, following the cessation of the state of emergency,' the Access Regulation was modified (doc. 6), taking into account the decrease in the circulation of the virus in our country, also providing for outpatient service patients the possibility to access the facility by presenting certification attesting to a negative result of a rapid antigen or molecular test performed within the 48 hours prior to access.";
- "The control system is carried out at the entrance exclusively by dedicated personnel, so-called 'verifying subjects,' designated by the Health Directorate and specifically authorized to process personal data. For the purposes of control, the official application released by the Ministry of Health (through Sogei) called 'VerificaC19' is used, according to regulatory indications;
- "Furthermore, in the case of an urgent visit or a patient requiring emergency services, the access procedure provides that the patient is allowed to enter the premises through a separate entrance dedicated to emergency services. In this case, the patient is received in an isolated room by an operator equipped with appropriate anti-contagion protective devices and, if in urgent conditions, is subjected to medical treatments or, if not urgent, a nasopharyngeal swab is performed."

In relation to what emerged from the documentation in the records, the Office notified the Clinic, pursuant to Article 166, paragraph 5, of the Code, of the initiation of the procedure for the adoption of the measures referred to in Article 58, paragraph 2, of the Regulation, inviting the aforementioned holder to submit defensive writings or documents or to request to be heard by the Authority (Article 166, paragraphs 6 and 7, of the Code; as well as Article 18, paragraph 1, of Law No. 689 of 24/11/1981) (note of XX, prot. No. XX).

In this act, the Office noted that on the same date, the page of the Clinic's website still indicated that "To access the facility, it is mandatory for everyone (...) to present a Covid-19 green certification issued: – following the administration of the booster dose after the primary vaccination cycle; – following the completion of the primary vaccination cycle or recovery, along with certification attesting to the negative result of the rapid antigen or molecular test performed within the 48 hours prior to access."

Considering the cessation of the state of emergency starting from XX, the Office therefore noted that the request for the presentation of the Covid-19 green certification to all patients directed to the healthcare services of the Clinic was devoid of an appropriate legal basis, given that such a limitation was not provided for by the applicable sector regulations at the time of the events reported by the notifier and was not ordered by the current legislation, thus violating Articles 5, paragraph 1, letters a) and b) and 9 of the Regulation, Article 75 of the Code, and the specific sector regulations (Law No. 87/2021, D.L. 01/04/2021, No. 44, and dPCM June 17, 2021).

By note of XX, the Clinic submitted its defensive memos, within which it requested to be heard in a hearing and represented that "the information provided by SMIH, with the response of XX, was based

solely on documentary findings. Subsequently, they were subject to further investigation and are only partially consistent with what has been the actual application practice of the access regulations formally approved in the facility, revealing some differences compared to what was reported in the response note of XX."

In particular, the Clinic, while deviating from what was indicated in the aforementioned note of XX, specified that: "the clinic has never limited access to healthcare services only to those who possessed green certification: if a patient was found not to have the aforementioned certification, SMIH offered the possibility of undergoing a rapid antigen test free of charge or, in case of refusal, allowed the use of services within premises specifically designated for the provision of services with enhanced anti-contagion measures";

"To further specify the actual processing of personal data that may have been carried out (consisting of the verification of the green certification by dedicated personnel, so-called 'verifying subjects,' designated by the Health Directorate and specifically authorized to process personal data through the application 'VerificaC19') is..."

It is important to emphasize that such checks have never actually concerned all patients and visitors of the clinic, but were carried out on a "sample" basis, including checks conducted on employees in the manner permitted by Article 9 septies of Decree-Law No. 52/2021. This was the case both prior to and during the period following the cessation of the state of emergency. The SMIH has interrupted the aforementioned sample checks since XX. Evidence of this is the fact that the two so-called verifiers have been removed from this task. Therefore, the control, contrary to what is provided for in the Access Regulation, was never carried out on all individuals accessing the facility, but only on a sample basis for patients entering the clinic.

"The access regulation of XX, therefore, was formally adopted, but it was not implemented. The continued presence of the same on the website was the result of mere oversight, as the clinic, following the first feedback from XX, immediately took steps to update the access rules to the facility (doc. 1), in accordance with the provisions of Decree-Law No. 24 of 24/03/2022, and the Ordinance of the Ministry of Health of XX."

"The indications regarding access rules issued by the Lazio Region to local facilities have contributed to making the regulation unclear and have influenced the SMIH in drafting the access modalities to the clinic's premises."

"Patients without a green pass were allowed access by providing the opportunity to perform a free antigen test at the clinic; in any case, if the patient without a green pass did not wish to undergo the antigen test, healthcare services were ensured in designated areas with additional anti-contagion measures."

"Following the clarifications requested by this Authority, the clinic immediately updated the access regulation (forgetting, due to a mere clerical error, to subsequently replace the page on the website) referring to the regulation provided by Decree-Law No. 24 of 24/03/2022 and the Ordinance of the Ministry of Health of 28/04/2022, applying the cases provided for in the table published by the Presidency of the Council of Ministers."

"The treatment was implemented approximately from mid-month XX until mid-month XX; the number of interested parties involved can only be inferred from presumptive data: based on what was actually carried out, it is estimated that, considering that approximately 1,500 patients access the clinic monthly and that the sample checks involved an approximate number between 10% in the initial period and 5% in the months of XX and XX, the total number of interested parties involved could be equal to n. 675 over a period of 5 months."

"No data of such subjects regarding the possession or lack of the green certification was retained or further processed or with tools other than the VerificaC19 app."

"In stating that the provisions subject to investigation have now ceased, it reiterated the peculiar context in which the system under investigation was implemented, considered, in good faith, as a

necessary measure to prevent possible transmission of infection.”

On XX, a remote hearing of the Clinic was held pursuant to Article 166, paragraphs 6 and 7 of the Code, in which it was further reiterated that “the checks of the green certifications were carried out in a manner much more restricted than those indicated in the September note, which were fully described in the note of November 12 of the previous year.” In addition to what was indicated in the defense memoranda submitted, the Clinic highlighted that “the good faith of the Hospital was also due to the fact that the access regulation at Salvator Mundi had been sent, along with other documentation, to the territorially competent ASL during the renewal of the health authorization without receiving any reminder from the same.”

The Clinic then reiterated that “it performed a free swab for those who were not in possession of a green pass precisely in order not to prevent access to the healthcare services provided by the facility. For outpatient patients who refused to undergo the swab, a differentiated pathway was nevertheless provided to allow access to services in a protected manner for both the patient and the entire hospital community” and that “it has not received specific complaints or grievances regarding the matter in question.”

2. Outcome of the investigative activity.

Taking note of what was represented by the Clinic in the documentation on file and in the defense memoranda, it is observed that:

personal data must be “processed lawfully, fairly, and transparently” (principle of “lawfulness, fairness, and transparency”), “collected for specified, explicit, and legitimate purposes” (“purpose limitation”) (Article 5, paragraph 1, letters a) and b) of the Regulation);

since the declaration of the state of emergency decided by the Council of Ministers on January 31, 2020, many urgent regulatory acts have been adopted, which contain provisions also relating to the processing of personal data carried out in the context of healthcare interventions provided during the aforementioned health emergency. That said, it should be noted that the urgent provisions adopted in recent years that have provided for emergency interventions involving data processing are the result of a delicate balance between public health needs and those related to the protection of personal data. in accordance with the provisions of the European Regulation for pursuing public interest reasons in the field of public health (see art. 9, par. 2, lett. i), of the Regulation). As reiterated by the provisions adopted during the emergency period, it remains established that the processing of personal data related to the management of the aforementioned health emergency must take place in compliance with the current regulations on the protection of personal data and, in particular, with the principles and limits applicable to processing, as outlined in art. 5 of the Regulation mentioned above; within this framework, therefore, the processing of data carried out through the control of Covid-19 green certifications qualifies as processing carried out for public health reasons and as such finds its legal basis in the specific sector regulations and not also in the consent of the data subject, from which the use of the same cannot depend if not regulated by primary legislation (see art. 9, par. 2, lett. i), of the Regulation);

with specific reference to the processing of data carried out through green certifications, as is known, the Authority has issued its opinion on the draft decree of the President of the Council of Ministers, adopted pursuant to art. 9, paragraph 10, of Decree-Law No. 52/2021, in agreement with the Minister of Health, the Minister for Technological Innovation and Digital Transition, and the Minister of Economy and Finance, regarding the processing of personal data, including health-related data, carried out through the National Digital Green Certificate Platform (“Piattaforma nazionale-DGC”) for the issuance, release, and verification of Covid-19 green certifications (EU Digital COVID Certificate, previously Digital Green Certificate, hereinafter green certifications) (provision available at www.gdpd.it, web doc. no. 9668064; DPCM June 17, 2021). Subsequently, the Authority also issued its opinion on the decrees that modified the aforementioned regulations (opinion of August 31, 2022, web doc. no. 9694010; opinion of October 11, 2022, web doc. no. 9707431; opinion of February 18, 2022, web doc. no. 9746905). In these opinions, the Authority's Board deemed that certifications attesting to vaccination or recovery from Covid-19 or the negative result of an antigenic or molecular test could not

be considered a necessary condition for allowing access to places or services or for establishing or identifying the modalities of legal relationships except to the extent that this is provided for by a primary norm, within the framework of adopting the necessary public health measures to contain the SARS-CoV-2 virus;

with reference to the specific case, it is highlighted that the sector regulations, also referenced on the website of the Ministry of Health and the Government during the legislative interventions that succeeded the entry into force of the provisions on green certifications, have never stipulated that a green certification was required for health needs, for which access has always been allowed for the procurement of medicines and medical devices and, in any case, for all purposes of prevention, diagnosis, and treatment (<https://www.dgc.gov.it/web/per-cosa-serve.html#struttura>); in addition, it should be noted that the regulations in force at the time of the events allowed for remaining in the waiting rooms of emergency departments and acceptance of emergency rooms as well as in the departments of hospital facilities, diagnostic centers, and specialist outpatient clinics only for the companions of patients not affected by Covid-19, provided they had green certifications, as well as for the companions of patients holding a disability recognition with a severity connotation (art. 2-bis of Decree-Law April 22, 2021, No. 52 and DPCM January 21, 2022). Except in cases of objective impossibility due to urgency, assessed by healthcare personnel, access to emergency services also always required undergoing a rapid antigen or molecular test simultaneously (art. 2-bis of Decree-Law April 22, 2021, No. 52);

the companions of patients holding a disability recognition with a severity connotation pursuant to art. 3, paragraph 3, of Law February 5, 1992, No. 104, were also always allowed to access and remain in the waiting rooms of emergency departments and acceptance and in the emergency departments as well as in the departments of hospital facilities, diagnostic centers, and specialist outpatient clinics. The same companions were also always allowed to provide assistance, even in the hospital ward, in compliance with the indications of the health director of the facility;

from XX, considering the end of the state of emergency, access for users and their companions to healthcare, social-healthcare facilities, and medical offices, public or private, for all purposes of prevention, diagnosis, and treatment has been allowed without them having to present their Covid-19 green certification;

from XX and until XX, for visitor access to the hospital wards, access was also allowed with the so-called strengthened COVID-19 green certification (issued following the administration of the booster dose after the primary vaccination cycle) and in some cases also together with a certification attesting to the negative result of the rapid antigen or molecular test, performed within the forty-eight hours preceding access (art. 1-bis, paragraph 1-sexies, D.L. 01/04/2021, No. 44). Health directors were given the authority to adopt more restrictive precautionary measures in relation to the specific epidemiological context, ensuring

minimum daily access not less than forty-five minutes (paragraph added by Article 7, paragraph 1, letter b), Decree-Law December 24, 2021, No. 221, converted, with amendments, by Law February 18, 2022, No. 11, and subsequently amended by Article 7, paragraph 2, letter b), Decree-Law March 24, 2022, No. 24);

the Authority has repeatedly highlighted that the competence regarding the introduction of measures limiting fundamental rights and freedoms involving the processing of personal data falls within matters subject to the state law reserve (Constitutional Court, ruling 271/2005 on the state law reserve on data protection; Constitutional Court, ruling 37/21), also recalling what was indicated by the Constitutional Court, according to which “the ongoing pandemic has required and requires interventions falling within the matter of international prophylaxis, which is the exclusive competence of the State pursuant to Article 117, second paragraph, letter q), of the Constitution” (Order No. 4/21) (provisions of May 25, 2021, web doc No. 9590466 and June 18, 2021, web doc No. 9671917);

the Guarantor has also repeatedly considered that the limitation of personal freedoms carried out through the processing of health data of the interested parties and implemented by conditioning access to places and services on the possession of a certification attesting to vaccination or recovery

from Covid-19, or the negative result of an antigenic or molecular test, is admissible only if provided for by a state law (Articles 6, paragraph 2, and 9 of the Regulation and Articles 2-ter and 2-sexies of the Code on the protection of personal data, Recital No. 48 of the Regulation of the European Parliament and of the Council on the EU digital COVID certificate adopted on June 14, 2021; see also Constitutional Court, ruling 271/2005 on the state law reserve on data protection; Constitutional Court, ruling 37/2021, see also the aforementioned provision of June 18, 2021); the Authority has indeed considered that certifications attesting to vaccination or recovery from Covid-19, or the negative result of an antigenic or molecular test, cannot be deemed a necessary condition for allowing access to places or services except to the extent that this is provided for by a primary norm. In this regard, it is noted that the Constitutional Court in ruling No. 164/2022 reiterated the “exclusive state competence in the matter of international prophylaxis (Article 117, second paragraph, letter q, of the Constitution),” and that “Article 9, paragraph 10-bis, of Decree-Law No. 52 of 2021, as converted, establishes that ‘[a]ny different or new use of the COVID-19 green certifications is arranged exclusively by state law,’ thus expressly confirming, with an additional provision in the conversion into law, what was already deducible from the previous paragraph 10, which entrusts the regulation of the aforementioned National-DGC Platform to a Prime Ministerial Decree.” In this ruling, the Court finally recognized that “it is up to the State, and for it to the Guarantor for the protection of personal data, to definitively limit the processing of data related to the use of the green certification”; in this regard, it is represented that the text of Decree-Law April 22, 2021, No. 52 (in Official Gazette No. 96 of April 22, 2021), coordinated with the conversion law of June 17, 2021, No. 87 entitled: “Urgent measures for the gradual resumption of economic and social activities in compliance with the containment needs of the spread of the COVID-19 epidemic” (in Official Gazette No. 146 of June 21, 2021) expressly provides that green certifications can be used exclusively for the purposes referred to in Articles 2, paragraph 1, 2-bis, paragraph 1, 2-quater, 5, 9-bis, 9-bis.1, 9-quinquies, 9-sexies, and 9-septies of the aforementioned decree, as well as in Article 1-bis of Decree-Law April 1, 2021, No. 44, within which fall the provisions related to the healthcare sector mentioned above (Article 9, paragraph 10-bis, Law No. 87/2021);

in relation to some local initiatives in which the presentation of green certifications was requested in the healthcare context also for purposes other than those strictly provided for by the cited norm, this Office, with note of XX (prot. XX), has drawn the attention of the Regions and the State-Regions Conference to the necessity of refraining from adopting or implementing territorial initiatives that foresee the use of green certifications for additional purposes and in ways that differ from those expressly provided by national law;

in balancing the protection of the rights of the interested parties and the protection of the health of patients, it must be taken into account that, throughout the emergency period, a complete mapping of the entire population regarding contagion from Covid-19 has not been carried out. Therefore, consistently with what was recommended by the Higher Institute of Health (ISS), until the spread of the Sars Cov 2 virus persists, individual protective measures should be adopted during every visit of every patient, as the visitor's positive status for the Coronavirus may not yet have been confirmed; considering that the possession of the Covid-19 green certification does not attest to negativity to the virus, the measure adopted by your Care Home, according to which the interested party without a green certification was invited to produce the result of a nasopharyngeal swab or to carry out the visit in differentiated modalities (“differentiated pathway to allow access to services in a protected manner”), besides not being provided for by any primary norm and being in contrast with the aforementioned national indications, has resulted in a processing of data in violation of the principles of lawfulness and fairness of processing and of

****Limitation of Purpose;** this also considering that, according to the latest statements made by the Care Home, the checks of the green certifications were carried out in a more restricted manner compared to those indicated in the regulation adopted by the same and indicated in the first response provided to the Authority, as they were not carried out for all patients but “in a ‘sample’ mode”; the decision of the Care Home to offer free of charge to those who were not “in possession of a green certification” the possibility of undergoing a rapid antigen test or, in case of refusal, to allow them to use the services “within premises specifically designated for the provision of services with enhanced anti-contagion

measures” has therefore resulted in the processing of data of patients who chose not to show their green certifications beyond what is provided for by the above-mentioned primary legislation, thus conflicting with the principle of lawfulness and fairness of processing and limitation of purpose. The methods of access to healthcare services indicated by the Care Home, in contrast to the specific recommendations of the ISS regarding the actions to be taken for the prevention of contagion highlighted above, have also resulted in a differentiated and potentially discriminatory treatment of such individuals; the circumstance reported by the Care Home according to which the aforementioned treatment was also determined by the unclear indications of the Lazio Region appears irrelevant since the regional indications referred to by the Care Home did not indicate the necessity of presenting the green certification for access to care by patients. In this regard, it is also highlighted that the institutions involved on the subject, including the Guarantor Authority, have repeatedly emphasized the specific scope of application of the Covid-19 green certifications, as also demonstrated by the informative pages of the Ministry of Health and the Government dedicated to this subject which have been constantly updated and the related FAQs published on the website of the aforementioned Ministry, within which precise clarifications were also provided regarding the circumstance that access to care was not conditional on the presentation of the green certification; the case referred to by the Care Home according to which the regulation for access to Salvator Mundi, which required the presentation of the green certification by patients, “had been sent to the territorially competent ASL at the time of the renewal of the health authorization without receiving any notice from it” does not appear relevant given the incompetence of the health authorities on this matter and considering the primary rank of the legislation on green certifications; the Authority has recently adopted a sanctioning measure against a healthcare facility for a treatment similar to that under examination (measure of October 20, 2022, web doc. no. 9827446).**

****3. Conclusions.****

In light of the evaluations mentioned above, taking into account the statements made by the holder during the investigation - and considering that, unless the act constitutes a more serious offense, anyone, in a proceeding before the Guarantor, who falsely declares or certifies news or circumstances or produces false acts or documents is liable under Article 168 of the Code “Falsehood in declarations to the Guarantor and interruption of the execution of the tasks or exercise of the powers of the Guarantor” - the elements provided by the data controller in the defensive memoranda do not allow to overcome the observations notified by the Office with the act initiating the procedure, nor do any of the cases provided for by Article 11 of the Guarantor Regulation no. 1/2019 apply. For these reasons, the unlawfulness of the processing of personal data carried out by the Care Home Salvator Mundi International Hospital s.r.l. is noted in the terms set out in the motivation, in violation of Articles 5, par. 1, lett. a) and b), and 9 of the Regulation, of Article 75 of the Code and the sector legislation (law no. 87/2021, D.L. 01/04/2021, no. 44 and dPCM June 17, 2021). In this context, while noting that the Care Home has stated that it has modified the procedures for the access of interested parties to outpatient services, considering, in any case, that the conduct has exhausted its effects, the prerequisites for the adoption of corrective measures referred to in Article 58, par. 2, of the Regulation do not apply.

****4. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (Articles 58, par. 2, lett. i), and 83 of the Regulation; Article 166, paragraph 7, of the Code).****

The violation of Articles 5, par. 1, lett. a) and b), and 9 of the Regulation, of Article 75 of the Code and the sector legislation (law no. 87/2021, D.L. 01/04/2021, no. 44 and dPCM June 17, 2021), caused by the conduct carried out by the Care Home, is subject to the application of the administrative pecuniary sanction pursuant to Article 83, par. 5, of the Regulation and Article 166, paragraph 2 of the Code. It should be noted that the Guarantor, pursuant to Articles 58, par. 2, lett. i), and 83 of the Regulation, as well as Article 166 of the Code, has the power to “impose an administrative pecuniary sanction pursuant to Article 83, in addition to [other] corrective measures referred to in this paragraph, or in lieu of such measures, depending on the circumstances of each individual case” and, in this context, “the Board [of the Guarantor] adopts the ordinance.”

INJUNCTION, which also provides for the application of the accessory administrative sanction of its

publication, in full or in extract, on the website of the Authority pursuant to Article 166, paragraph 7, of the Code" (Article 16, paragraph 1, of the Regulation of the Authority No. 1/2019). The aforementioned monetary administrative sanction imposed, depending on the circumstances of each individual case, must be determined in amount taking into account the principles of effectiveness, proportionality, and deterrence, as indicated in Article 83, paragraph 1, of the Regulation, in light of the elements provided in Article 85, paragraph 2, of the Regulation, with respect to which it is noted that:

1. The Authority became aware of the event following a report (Article 83, paragraph 2, letter h), of the Regulation);
2. The processing, which lasted for 5 months until XX, involved, according to the statements in the records, a presumed number of affected individuals equal to 675 (Article 83, paragraph 2, letters a) and g), of the Regulation);
3. The Authority has already intervened on the subject with the numerous measures cited in this provision (Article 83, paragraph 2, letter a) of the Regulation);
4. The Care Home cooperated in order to remedy the violation (Article 83, paragraph 2, letter f) of the Regulation);
5. The Care Home asserted that it acted in good faith in order to protect the health status of patients and healthcare professionals (Article 83, paragraph 2, letter k), of the Regulation).

In light of the aforementioned elements, evaluated as a whole, it is deemed appropriate to determine the amount of the monetary sanction provided for in Article 83, paragraph 5, letter a), of the Regulation, in the amount of 60,000 euros (sixty thousand), equal to 0.3% of the maximum penalty, for the violation of Articles 5, paragraph 1, letters a) and b), and 9 of the Regulation, Article 75 of the Code, and the sector regulations (Law No. 87/2021, Decree-Law 01/04/2021, No. 44, and Prime Ministerial Decree of June 17, 2021), as a monetary administrative sanction deemed, pursuant to Article 83, paragraph 1, of the Regulation, effective, proportionate, and deterrent.

It is also considered that the accessory sanction of publication on the Authority's website of this provision, provided for by Article 166, paragraph 7, of the Code and Article 16 of the Regulation of the Authority No. 1/2019, should be applied, also in consideration of the type of personal data subject to unlawful processing.

Finally, it is noted that the conditions referred to in Article 17 of Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers entrusted to the Authority, are met.

ALL OF THE ABOVE HAVING BEEN STATED, THE AUTHORITY

declares the unlawfulness of the processing of personal data carried out by Casa di cura Salvator Mundi International Hospital s.r.l, for the violation of Articles 5, paragraph 1, letters a) and b), and 9 of the Regulation, Article 75 of the Code, and the sector regulations (Law No. 87/2021, Decree-Law 01/04/2021, No. 44, and Prime Ministerial Decree of June 17, 2021) as stated in the reasoning.

ORDERS

pursuant to Articles 58, paragraph 2, letter i), and 83 of the Regulation, as well as Article 166 of the Code, Casa di cura Salvator Mundi International Hospital s.r.l, Tax Code and VAT Number 09023871008, represented by the legal representative pro tempore, to pay the sum of 60,000 euros (sixty thousand), as an administrative monetary sanction for the violations indicated in this provision; it is noted that the offender, pursuant to Article 166, paragraph 8, of the Code, has the option to settle the dispute by paying, within 30 days, an amount equal to half of the imposed sanction.

ORDERS

the aforementioned Care Home, in case of failure to settle the dispute pursuant to Article 166, paragraph 8, of the Code, to pay the sum of 60,000 euros (sixty thousand), according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts in accordance with Article 27 of Law No. 689/1981.

DISPOSES

pursuant to Article 166, paragraph 7, of the Code, the full publication of this provision on the website of the Authority and the annotation of this provision in the internal register of the Authority, provided for by Article 57, paragraph 1, letter u), of the Regulation, of the violations and the measures adopted in accordance with Article 58, paragraph 2, of the Regulation.

pursuant to Article 78 of the Regulation, Articles 152 of the Code, and Article 10 of Legislative Decree No. 150/2011, against this provision it is possible to appeal to the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, September 28, 2023

THE PRESIDENT

Stanzione

THE REPORTER

Ghiglia

THE SECRETARY GENERAL

Mattei